

13. *Rodriguez Lopez v. Shepherd, et al*, Case No. CIVVS2504430
Defendant Shephard's Motion for Leave to File a Cross-Complaint
5/14/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion. The proposed Cross-Complaint will be filed within the next 20 days.

A motion for leave to amend is directed to the sound discretion of the Court. (Code Civ. Proc., § 473(a)(1).) Policy favors resolution on the merits; thus, the court will usually liberally grant leave to amend a pleading. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) If a motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error, but an abuse of discretion. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.)

Here, movant alleges the proposed Cross-Complaint was a prior filing that appears to have been improperly rejected. Alternatively, he sets forth grounds in that the prior iteration did not name the plaintiff as cross-defendant and that he believed in good faith that the deadline to timely file had not expired. Further, he alleges delay was necessary as he had to comply with the Tort Claims Act before he could file the proposed cross-complaint, which names the City of Hesperia as a cross-defendant. No opposition or assertion of prejudice is submitted.

Given the general policy to liberally grant leave to amend, the Court would allow.
